

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN BRAZIL

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Community action decides project outcomes in Brazil. The clearest recent proof came from a bend in the Tapajós River, deep in the Amazon. The government planned **São Luiz do Tapajós**, an eight-thousand-megawatt mega-dam — what would have been the country's second-largest, the first of a cascade of dozens planned for the basin — and it would have flooded **Sawré Muybu**, the traditional land of the **Munduruku** people. For years the government insisted the land was not officially Indigenous, and stalled its recognition. So the Munduruku did something extraordinary: frustrated by the delays, they **marked out the boundaries of their own territory themselves** — an act of self-demarcation — and kept up the pressure alongside allies. In April 2016, Brazil's Indigenous agency **FUNAI** published a report recognising Sawré Muybu as Munduruku land; within a day, the environmental agency **IBAMA suspended the dam's licensing**, and by August it had **denied the licence outright**, citing reports from FUNAI, the federal attorney's office, and its own technicians. A mega-dam that had seemed inevitable was stopped, because a people asserted a constitutional right to their land and a chain of institutions was made to honour it. The scale is worth grasping: São Luiz do Tapajós would have generated some eight thousand megawatts, and it was only the first of a planned cascade of dozens of dams across the Tapajós basin. FUNAI's report recommended demarcating roughly 178,000 hectares of Munduruku land; IBAMA suspended the licensing within a day of it and formally denied the licence that August, weighing the opinions of FUNAI, the federal attorney's office, and its own technical staff — all of which advised against it. The Constitution forbids flooding Indigenous land save in the most exceptional circumstances and only with the authorisation of Congress, and once the land was recognised, that barrier could not be wished away.

Tapajós teaches two things about winning in Brazil. The first is the pattern: not a single silver bullet, but the combination of every lever — the environmental licensing and its public hearings, the constitutional shield around Indigenous land, prior consultation, the courts, mobilisation, and national and international attention — pressed until a project became legally and politically impossible. The second is distinctly Brazilian. Brazil has an institution most countries lack: an **independent Ministério Público** — public prosecutors with a constitutional duty to defend the environment and traditional peoples, who can investigate a project and take it to court on a community's behalf through a powerful collective lawsuit, the **ação civil pública**. A community here does not always have to sue; sometimes it persuades a prosecutor to sue for it — an independent, publicly funded litigator that a proponent cannot outspend or outlast, and that answers not to the government but to the law and the public interest.

Most communities, though, do not know HOW to make opposition effective. They attend one public hearing and go home. They assume the project "will be licensed anyway," and so they never file a substantive objection, never take a complaint to the Ministério Público, never demand consultation, never assert the constitutional protection of their land, never build the mobilisation that changes a decision. They generate a burst of outrage without a plan to sustain it. They gather a crowd and lose it to exhaustion. The gap between a community that stops a project and one that watches it get built is rarely courage or numbers. It is method.

This guide shows what actually works — inside the Brazilian system.

The Strategic Framework

Effective opposition campaigns follow the same underlying pattern, whichever project they face:

STEP 1: TARGET IDENTIFICATION	(find the decision and its weak point)
STEP 2: DOCUMENTATION	(build proof of harm and of every defect)
STEP 3: LOCAL OPPOSITION	(organise a movement that lasts)
STEP 4: LEGAL CHALLENGES	(licensing, the Ministério Público, consulta, Indigenous rights)
STEP 5: MEDIA STRATEGY	(make the fight visible and impossible to ignore)

These steps operate **simultaneously, not in sequence**. Documentation feeds the legal case and the media story at once; the movement sustains the pressure that decision-makers and courts respond to; a lawsuit is a headline and a headline strengthens a lawsuit. The community that runs all five together, each reinforcing the others, is the one that

wins. The Mundurucu did exactly this — they documented and demarcated their land, organised a durable resistance, worked with prosecutors and allies, and made the Tapajós a national and international story, all at once.

The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. Brazil's give communities a distinctive set:

- **The Ministério Público.** Independent federal and state prosecutors have a constitutional mandate to defend the environment, Indigenous peoples, and collective rights. A community can file a **representação** (a complaint), and the prosecutor can open an investigation and bring an **ação civil pública** — a collective lawsuit that can win an injunction halting the project. This is Brazil's single most distinctive lever.
- **The constitutional shield around Indigenous and traditional land.** Under **Article 231** of the Constitution, Indigenous peoples hold original rights to their traditionally occupied lands, and flooding or exploiting them for energy or mining requires prior consultation and even **authorisation by Congress** — a formidable barrier, as Tapajós showed. Quilombola and other traditional communities hold related protections.
- **Prior consultation.** Under **ILO Convention 169**, Indigenous and traditional peoples have a right to **free, prior, and informed consultation**, and communities have written their own binding **consultation protocols** to define how it must be done.
- **Environmental licensing with public hearings.** Major projects need a staged environmental licence based on an **EIA/RIMA**, with a mandatory **audiência pública** — a formal entry point for evidence and objection.
- **The citizen's own lawsuit.** The **ação popular** lets any citizen go to court to annul an act that harms the environment or the public patrimony.
- **A deep resistance tradition.** From the Amazon to the cities, Brazil has a powerful tradition of community, Indigenous, and social-movement mobilisation.

What This Guide Will Not Pretend

It would be dishonest to promise these levers always prevail. Brazil has a powerful countervailing tool, the **suspensão de segurança**, by which the government can persuade a senior judge to **lift an injunction** on grounds of harm to the public order or economy — the very mechanism by which the **Belo Monte** dam was built despite dozens of prosecutors' victories against it. Environmental licensing approves the great majority of projects, and the agencies that stopped Tapajós have at other times been pressured and weakened by the government of the day. Demarcation of Indigenous land is slow and bitterly contested. And Brazil is one of the most dangerous countries on Earth to be a land or environmental defender. This guide takes those facts seriously, names them plainly, and shows you how to win anyway — and, where an outright stop is not realistic, how to secure the delay, the conditions, the exposure, and the worn-down proponent that, in a hard fight, are often what winning actually looks like.

HOW THE SYSTEM WORKS

You cannot pull a lever you cannot see. Before you spend a single weekend, map who actually decides your project's fate, at which level, and where along that path the decision is weakest.

The Levels of Decision

A Brazilian development project runs through a structured set of institutions, and each is a place to intervene.

Environmental licensing. For most significant projects, the decisive process is the staged **environmental licence** — **Licença Prévia**, then **Licença de Instalação**, then **Licença de Operação** — issued by **IBAMA** (for projects of national or regional impact, such as Amazon dams) or by the **state environmental agency**. A high-impact project requires an **EIA/RIMA** and a public hearing. This is where most projects live or die. The licence comes in three stages under the framework set by the environmental council CONAMA: the **Licença Prévia** approves the project's basic concept and location and attaches the conditions that must be met; the **Licença de Instalação** authorises construction; and the **Licença de Operação** allows it to run. Each stage is a fresh decision that can be objected to, challenged, and — if conditions are breached — revisited, so the fight does not end when the first licence is granted.

The Ministério Público. Independent of the government, the **Ministério Público Federal (MPF)** and the state MPs can investigate a project (through an **inquérito civil**) and sue to stop it (through an **ação civil pública**), and they routinely do so in defence of the environment and Indigenous peoples. They are prompted, very often, by a community's complaint.

Indigenous and traditional peoples. Cutting across everything: where a project affects **povos indígenas** or

quilombola and other traditional communities, their constitutional land rights, their right to consultation, and the demarcation process (through **FUNAI** for Indigenous land) are central — and, for energy or mining on Indigenous land, **congressional authorisation** is constitutionally required.

The courts. Environmental and Indigenous disputes run through the **Justiça Federal** and, on constitutional questions, up to the **Supremo Tribunal Federal (STF)** — but subject to the government's power of *suspensão de segurança*.

The Journey of a Project

A typical major project moves from a proposal, to the **EIA/RIMA** and the licensing process at IBAMA or the state agency, to the **audiência pública**, to the **Licença Prévia** and later licences, through any **consulta** and, for Indigenous land, **congressional** and demarcation questions, into the courts if challenged, and only then to construction. **Every one of those stages is a door you can put your foot in.** The earliest doors are the cheapest and widest: a substantive objection at the hearing, a complaint to the Ministério Público, evidence that the EIA is deficient. The later doors — an *ação civil pública*, a *consulta* claim, a constitutional challenge over Indigenous land — are more demanding but real, and communities walk through them and win. Find out exactly where your project stands on this path today; that tells you which door is open now.

Follow the Money and the Licence

Behind the licence stand a proponent, its financiers (often including public development banks), its contractors, and the officials who approved it. A large project is often driven by a consortium answerable to investors, lenders, and a public reputation a campaign can reach. Trace who owns and funds the proponent, who profits, and which agency issued the licence. Two questions unlock most Brazilian fights: **Did the licensing comply with the law — the EIA, the hearing, the consultation, the constitutional protection of the land — and were the impacts honestly assessed?** and **Who benefits from pretending they were?** Mapping the chain also shows where the project is exposed that the licensing agency is not: many large Brazilian projects lean on public development-bank finance and on private investors with their own environmental and human-rights commitments, and a project resting on a constitutionally shaky licence is a risk to every institution behind it. These are pressure points the agency does not control.

The Overseers

Finally, know the bodies that watch the deciders, because they are levers too. The **Ministério Público** is both a watchdog and a litigator. The **Justiça Federal** and the **STF** review legality and constitutionality. The **Tribunal de Contas** audits public money. **FUNAI** defends Indigenous land, and the federal attorney's office (**AGU**) advises the State — its advice against São Luiz do Tapajós helped sink the licence. Each overseer is a separate front, reachable with the same evidence, and a project rarely survives pressure on several at once. You do not have to choose one door: the same well-documented file can go to the licensing agency, the Ministério Público, the Justiça Federal, the Tribunal de Contas, FUNAI, the project's financiers, and the press at once, and each front that opens makes the others harder to close. A Brazilian campaign's power comes not from any single lever but from applying several at the same time — the very stacking that a lone *suspensão de segurança* cannot undo.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how Brazilian and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the project affects **Indigenous or traditional land** (which raises the constitutional shield), whether the **Ministério Público** takes up the case, whether the **EIA and consultation have real defects**, whether the government deploys a **suspensão de segurança**, and whether the public and the proponent's financiers can be reached. Where Indigenous rights are engaged and prosecutors act, Brazil's levers are strong; where the paperwork is clean and the government is determined, discount the figures and think in terms of delay, conditions, exposure, and mobilisation.

Individual Step Success Rates

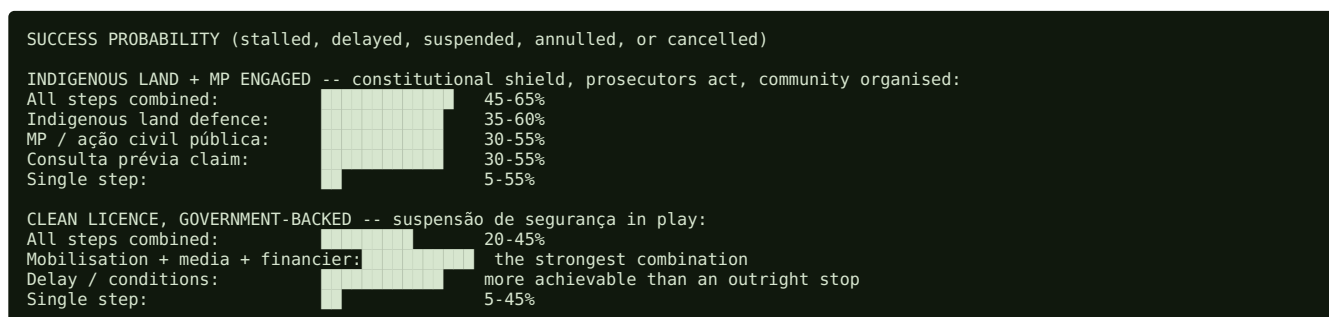
Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5–10%	1–3 months	low	Basis for every other step
Objection at the audiência pública	15–35%	during licensing	low	On record; conditions; grounds
Complaint (representação) to the	20–55%	months	low	Investigation of the project's legal situation

Complaint (representação) to the Ministério Público	30-55%	months–years	low	investigation; ação civil pública; injunction
Ação civil pública (via MP or association)	30-50%	1-4 years	low–moderate	Injunction; licence suspended or annulled
Consulta prévia claim (ILO 169)	30-55%	6-36 months	low–moderate	Licensing halted for lack of consultation
Indigenous / quilombola land defence (Art 231/68)	35-60%	years	low–moderate	Project barred from protected land
Ação popular (citizen suit)	20-40%	1-3 years	low	Harmful act annulled
Environmental-licence challenge (EIA defects)	25-45%	1-3 years	low–moderate	Licence suspended; reassessment
Access-to-information route	high for disclosure	weeks–months	low	Documents released; defects exposed
Media & public campaign	30-55%	ongoing	low	Political cost raised; decision shifts
International / financier pressure	25-50%	6-48 months	low	Funders or buyers walk away
All steps combined (Indigenous land, MP engaged)	45-65%	1-5 years	low–moderate	Stalled, suspended, annulled, or cancelled
All steps combined (clean licence, govt-backed)	20-45%	1-5 years	moderate	Delayed, exposed, conditioned; sometimes stopped

Key insight: every step together beats any single one, and Brazil's real strengths are distinctive — the **independent Ministério Público** and the **ação civil pública**, the **constitutional shield around Indigenous and traditional land**, **prior consultation** and community protocols, the **ação popular**, licensing **public hearings**, and a **deep resistance tradition**. Its constraints are the **suspensão de segurança** override, a licensing system that **approves most projects**, **slow and contested demarcation**, **agencies vulnerable to political pressure**, and **grave danger to defenders**.

A note on cost: documenting, objecting, filing a representação to the Ministério Público, and requesting information are inexpensive — and the Ministério Público's power means a community can often trigger a powerful lawsuit without paying for litigation itself, which is the single most important fact about Brazilian environmental defence. Where a community or association litigates directly, public-interest lawyers and NGOs (as International Rivers and others were on the Tapajós) can help. The expenditure that most changes outcomes is committed technical and legal support and the reach of the media and mobilisation.

Effectiveness Visualization



How to read this honestly. The levers that most change outcomes in Brazil are **the Ministério Público, the constitutional land shield, and consulta** where Indigenous or traditional peoples are engaged, and **the mobilisation, the media, and financier pressure** everywhere. Tapajós shows the ceiling: self-demarcation, an Indigenous agency's recognition, prosecutors and allies, and public pressure combined to sink a mega-dam's licence. The floor is set by the suspensão de segurança and by a government determined to build — Belo Monte was completed despite dozens of prosecutors' wins, each overturned on "public order" grounds. Most Brazilian fights sit between them, and the honest lesson is that the Ministério Público, the land shield, and mobilisation are real and distinctive levers — but against a clean, government-backed project, the realistic win is often delay, conditions, exposure, and a proponent worn down, as much as an outright, permanent stop. Use the table to plan, not to predict: it tells you which combinations have historically done the most work and where to put scarce time first. The single most important reading is that no row on its own is as strong as the rows run together — the community that documents, activates the Ministério Público, asserts its land and consulta rights, litigates on several fronts, and publicises at once consistently outperforms the one that pins its hopes on any single move or any single injunction.

Step Importance Ranking (When All Combined)

1. **The Ministério Público and the ação civil pública** — Brazil's decisive lever; independent prosecutors who investigate and sue on a community's behalf.
2. **The constitutional shield around Indigenous and traditional land** — Article 231, demarcation, and the congressional-authorisation requirement that sank Tapajós.
3. **Prior consultation and community protocols** — the ILO 169 right, defined on the community's own terms.
4. **The mobilised, sustained movement** — the resistance, including self-demarcation, that makes a project impossible and prompts the institutions to act.
5. **Media and financier pressure** — the coverage and reputational pressure that raise the cost of proceeding.

What Brazilian Campaigns Actually Show

A few patterns recur. **Indigenous land can stop a mega-dam** — Sawré Muybu did, through self-demarcation, FUNAI recognition, and a denied licence. **The Ministério Público is a formidable ally** — prosecutors have sued to halt project after project. **Consulta matters** — licensing has been suspended by the courts where the required prior consultation was skipped. **Mobilisation prompts the institutions** — the Munduruku's resistance created the moment FUNAI and IBAMA acted in. **But the suspensão de segurança can override the courts** — Belo Monte proved it — the licensing approves most projects, and defenders face lethal danger. The through-line: **object at the hearing; take a complaint to the Ministério Público; assert the constitutional land shield and consulta; document every defect; mobilise the public and reach the financiers — and expect a long fight measured in delay, conditions, and exposure as much as an outright stop.**

STEP 1: TARGET IDENTIFICATION

Every effective campaign begins by finding the exact decision that governs the project — and its weakest point. Vague opposition to "the dam" goes nowhere; opposition to "the Licença Prévia sought on an EIA that understated the flooding of Indigenous land, without the prior consultation ILO 169 requires and the congressional authorisation the Constitution demands" is a case. Answer five questions.

The Five Core Questions

1. **What exactly is proposed, and under what licence?** Name the project, the proponent, and the specific instrument it needs or holds — the environmental licence (and whether IBAMA or the state agency), the EIA/RIMA, the water and sectoral permits. Each has conditions and a paper trail, and each is a place a defect hides.
2. **What stage is it at?** Entering licensing? EIA under review? Audiência pública held or pending? Licença Prévia granted? In court? Under construction? The stage dictates the door. If the hearing is pending, your objection and evidence are the cheap, powerful route now; if a licence is granted, a complaint to the Ministério Público and an ação civil pública may be the route.
3. **Does it affect Indigenous or traditional land — and was there consulta?** This is often the decisive Brazilian question. Does the project affect the land of **povos indígenas, quilombolas**, or other traditional communities? If so, the **constitutional shield (Article 231)**, the **consultation** requirement, and — for energy or mining on Indigenous land — the **congressional-authorisation** requirement are among the strongest grounds there are. This lever belongs to the affected people; your role is to support their leadership.
4. **Is the EIA or the process defective?** Was the **EIA/RIMA deficient** — understating the flooding, the fisheries, the forest, the cumulative basin-wide effects? Was the **audiência pública** a formality? Was **consultation** skipped? Each defect is a ground for the Ministério Público and the courts.
5. **Who decides, who benefits, and who is watching?** Which agency and officials licensed it; who owns, funds, and builds it (including any public banks); which Indigenous and traditional communities are affected; and which prosecutors, NGOs, press, and international allies can be reached. This maps your levers and your audiences at once.

A Worked Example

Suppose a company proposes a dam or mine that would flood part of an Indigenous community's land, with the EIA under review and the Licença Prévia not yet granted.

Working the five questions: the project needs a **Licença Prévia** from IBAMA or the state agency (pending — get the EIA

and act). It is **in licensing**, so the **audiência pública** objection and a complaint to the **Ministério Público** are the live routes now, with an **ação civil pública** held in reserve. The **Indigenous land** raises the **constitutional shield, consulta, and the congressional-authorisation requirement** — led by the community. The **EIA** may be deficient on the flooding and fisheries. The licensing agency decides, so the **Ministério Público, the land shield, the courts, and the public** carry more weight than quiet lobbying.

Within a weekend you have moved from "we oppose the dam" to a target list: obtain the EIA/RIMA and object at the hearing; file a **representação to the Ministério Público Federal**; support the community's **consulta** and its constitutional land claim (and, where they choose it, self-demarcation and a consultation protocol); identify the EIA's defects; map the financiers and public banks; and prepare the river-and-territory story for the press. That is a campaign, not a complaint. Notice what the exercise did: it converted a diffuse fear into a short list of concrete, assignable tasks — get the EIA, file the **representação**, support the **consulta**, map the financiers — each tied to a specific lever and each of which can begin this week, several of them before the **Licença Prévia** is even granted. That is the difference the five questions make.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Documentation is the foundation everything else stands on. A prosecutor, a federal judge, a journalist, and a project's financiers all move on evidence, not indignation. Build your file in three layers.

Layer 1: The Official Record

Get the documents the decision rests on. Obtain the **EIA/RIMA** and its annexes; the **audiência pública record**; the **licence and its conditions** (and the technical opinions — *pareceres* — behind it); any **consultation record**; and the FUNAI and land-demarcation status. Much of this is public through the licensing agency and Brazil's **access-to-information law (Lei de Acesso à Informação)**. The gap between what the EIA claims and what the science, the river, and the Constitution require is where cases are won. The Tapajós fight turned on exactly this — the documented reality that the dam would flood recognised Munduruku land, which the Constitution protects, and an EIA and process that tried to wish that away. Read the EIA/RIMA not only for what it claims but for what it quietly concedes and omits — the reservoir area understated, the fisheries surveyed thinly, the downstream and cumulative effects of a whole basin of dams declined, the affected communities undercounted. It is written by consultants paid to secure the licence; read against the grain, with a scientist's eye and against the internal technical opinions once you obtain them, it is often where the strongest objection is hiding in plain sight.

Layer 2: The Ground Truth

Document the reality the paper hides. Photograph and date the **actual territory** — the river, the forest, the fishing grounds, the villages, the footprint — and geotag it. Log **incidents**: a fish kill, deforestation, river changes, works beyond the licence. Capture **before-and-after** with your own photos and with freely available satellite imagery, which can show clearing and the true scale. Record **the land and its use**: where the affected Indigenous or traditional community chooses to share it, its knowledge, occupation, and self-demarcation of the territory is powerful evidence — the Munduruku's own mapping of Sawré Muybu was central. Add independent technical readings — a fisheries biologist's, a hydrologist's — where you can get them. Community and Indigenous-led monitoring carries real weight.

Layer 3: The Defects and the Rights

Finally, document the failures of process and the constitutional lines the project crosses. Does it **flood or exploit Indigenous or traditional land** protected by the Constitution, without **congressional authorisation**? Was **prior consultation** skipped or faked? Was the **EIA/RIMA deficient** — understating the flooding, the fisheries, the forest, the cumulative basin-wide effects? Was the **audiência pública** a formality? Each defect is a separate ground — for an objection, a **representação** to the **Ministério Público**, an **ação civil pública**, a **consulta** claim, or a constitutional challenge — and together they make a case that is hard to wave away. This is the layer that most often decides Brazilian fights, because here a project that looked licensable is revealed to violate the constitutional protection of a people's land, to have skipped consultation, or to rest on an assessment that hid its true harm. Work it methodically against each requirement: does the project touch constitutionally protected land, and was there congressional authorisation; was there genuine prior consultation on the community's terms; were the flooding, the fisheries, the forest, and the cumulative basin-wide effects honestly assessed; was the **audiência pública** real; are the licence conditions being met? Where the answer is no, capture the proof — because each 'no' is a separate ground a prosecutor, a court, or the constitutional shield can act on.

WHAT TO GATHER, AND WHERE TO FIND IT

This is the practical companion to Step 2: the specific records that decide Brazilian cases, and where to obtain them. You will not need every item; you will need the few that expose your project's particular defect.

The Licences and Their Paper Trail

- **The EIA/RIMA and its annexes**, from the licensing agency (IBAMA or the state agency). Read it for what it understates — the area flooded, the fisheries and river, the forest, the affected communities, the cumulative effects of a whole cascade of dams.
- **The audiência pública record** — who spoke, what was asked, and whether concerns were answered.
- **The licence and the technical opinions (pareceres)** behind it — including any FUNAI, ICMBio, or agency technicians' opinions; a critical internal opinion that was overridden is powerful, as the opinions against Tapajós proved.
- **The consultation record** — whether consulta prévia happened, how, and whether the community accepts it as genuine.
- **The land status** — the FUNAI demarcation stage of any Indigenous territory, or the quilombola titling status, that the project would affect.
- **The water and sectoral permits**, and the financing (including any public development bank involvement).

How to Get Them

Much of the licensing file is public through the agency, and the **audiência pública** is a key open window — so watch for it and act while it is open. For everything else, use Brazil's **access-to-information law (Lei de Acesso à Informação)**: a request to IBAMA, the state agency, FUNAI, or the relevant body obliges a response. A refusal is itself a documentable fact. And remember a distinctively Brazilian route: you do not always have to gather everything yourself — a **representação to the Ministério Público** can trigger an **inquérito civil**, and the prosecutor has powers to **requisition documents** the community could never obtain alone. Move early, because objections and evidence entered while the licensing is open carry more weight than the same point raised after the licence is granted. A practical tip: make access-to-information requests specific and dated, keep proof of when you sent them and when they were answered, and treat a refusal not as a dead end but as a documentable fact — and, better still, as something to hand to a prosecutor, whose requisition powers reach files a citizen's request cannot. An agency that will not release its own technical opinions on a project is telling you something worth knowing, and telling a prosecutor too.

The Ground Evidence

- **Dated, geotagged photographs and video** of the territory, the river, the forest, the villages, the works.
- **Satellite before-and-after** from freely available imagery, to show clearing, flooding, or the true extent.
- **The land and its occupation** — where the community chooses to share it, its mapping and self-demarcation of the territory, its use of the river and forest; the Munduruku's own maps were decisive.
- **Independent technical readings** — a fisheries biologist's, hydrologist's, or forest ecologist's report, and an independent review of the EIA. NGOs and university partners can help source these.
- **Maps** overlaying the footprint on the Indigenous or quilombola territory, the river, the forest, and the protected area — a single map showing a reservoir over a people's land is worth pages of argument.
- **Testimony and knowledge** — from the affected community (on its own terms and led by it), and from riverside dwellers, fishers, and independent experts.

Organise It So It Persuades

Keep a **master timeline** of every licensing step, the hearing, the licence, the consultation, incidents, and deadlines — the spine of any case, and of any representação to the Ministério Público. Keep a **document index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets a volunteer, a prosecutor, a journalist, and a judge all see the same clear picture fast — and it guards against the campaign's own worst enemy, a claim that cannot be sourced when the other side challenges it. In a fight that can run for years and pass through many hands, the community with the better-kept file is very often the one that prevails.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO

ORGANISE A MOVEMENT THAT LASTS

Evidence and law do not stop projects on their own. Organised people do — sustained, visible, and credible over the months or years a fight takes. This is the step the Munduruku did best: a people who organised their resistance, mapped their own land, and did not let the government's delays defeat them.

Phase 1: The Core, and the Leadership of the Affected People

Start with a small, committed core — five to fifteen people who will carry the work. Where the project affects an Indigenous, quilombola, or other traditional community, the single most important early step is to **respect and support that community's own leadership and organisation**: the constitutional land rights and the right to consultation are theirs, and the strongest campaigns support that leadership rather than substituting for it. Follow the community's lead, and never presume to speak on its behalf. Assign roles: documentation, legal and Ministério Público liaison, technical, media, community liaison, and coordination. Agree on the goal — a denied or suspended licence, a project barred from the land, conditions, a financier walking away — and on what you will and will not accept.

Phase 2: The Coalition

Then widen deliberately. Bring in **riverside and fishing communities, neighbouring towns, unions, faith networks (such as the Catholic Church's Indigenous and pastoral bodies), students, and scientists**. Reach the **allies with capacity** — the environmental and Indigenous-rights NGOs and public-interest lawyers who litigate these cases; the national and international organisations (as International Rivers, Greenpeace, and Amazon Watch were on the Tapajós) whose reach and expertise amplify a local fight; independent scientists; and the financier-facing campaigners who pressure banks and buyers. The Tapajós campaign drew its power from exactly this breadth — the Munduruku joined to national and international allies and to sympathetic prosecutors — which is precisely the spread a winning campaign needs.

A worked coalition example. Facing a dam on Indigenous land, the affected people lead; riverside communities and a fishing colony join; national and international NGOs bring reach and science; a prosecutor opens an *inquérito civil* on the community's complaint; and financier campaigners brief the project's banks. No single group could have carried it; together they cover documentation, law, science, Indigenous legitimacy, national and international reach, and financial pressure.

Phase 3: Sustaining It

Campaigns die of burnout, not defeat. Meet on a rhythm. Give people concrete, finishable tasks. Mark small wins — a hearing packed, a document requisitioned by a prosecutor, an *inquérito* opened, a critical *parecer* surfaced. Rotate the exhausting roles. And protect people — this matters gravely in Brazil, one of the most dangerous countries for defenders: keep leadership collective and visible; document every threat; build strong links to prosecutors, the press, and national and international networks that raise the cost of harming a known, connected leader; and get security and legal advice. Sustaining a campaign — as the Munduruku's years of resistance show — is how these fights are won, and the ones that endure pace themselves. Build in the things that keep people together and safe: welcome newcomers, share food, mark the victories, root the campaign in the community's own life and leadership, and never let a leader stand alone and exposed. In Brazil, durability and collective visibility are not only how a campaign outlasts a proponent betting on fatigue — they are also part of how its people stay protected.

Phase 4: Showing Strength

Numbers and legitimacy must be seen. Turn people out for the *audiência pública* and public meetings. Gather objections and testimony. Undertake, where the community chooses, powerful assertions of right — the **self-demarcation** of territory that the Munduruku used to force recognition. Hold peaceful, well-documented actions that make the fight a national and international story, always following the affected people's lead on any action on their land. Be clear-eyed about safety and legal risk, and take advice. The point is not spectacle; it is to demonstrate, to the licensing agency, the prosecutors, the courts, and the financiers, that the opposition is broad, rooted, and not going away.

STEP 4: LEGAL CHALLENGES — THE MINISTÉRIO PÚBLICO, CONSULTA, AND THE LAND SHIELD

Brazilian law gives communities a real arsenal, and you do not need a final ruling to win with it: an objection, a complaint to a prosecutor, or a lawsuit delays a project, forces disclosure, and creates leverage and headlines. The distinctive move here is that the community often does not litigate alone — it activates the **Ministério Público**.

The Ministério Público and the Ação Civil Pública

Brazil's single most powerful lever is the **Ministério Público** — independent prosecutors with a constitutional duty to defend the environment and traditional peoples. A community files a **representação** (a formal complaint) with the **MPF** (federal, for Indigenous land, federal licensing, and Amazon matters) or the state MP. The prosecutor can open an **inquérito civil** to investigate, requisition documents, and — if satisfied — bring an **ação civil pública** (Law 7.347/1985), a collective lawsuit that can win an **injunction (liminar)** halting the project and, ultimately, its annulment or the repair of damage. This is transformative: a community with no money can set a formidable, publicly funded litigator in motion. It is worth understanding why this matters so much in Brazil specifically: litigation is slow and can be costly, and a small riverside or forest community rarely has the means to sustain a case against a well-funded consortium for years. The Ministério Público removes that asymmetry at a stroke — the prosecutor carries the cost, wields investigative powers no private party has, and cannot be outspent or outlasted by the proponent. Make your **representação** detailed, evidenced, and specific — it is the seed of the whole legal fight. The Ministério Público's powers flow from the Constitution itself (Articles 127 to 129), which charges it with defending the environment and other diffuse and collective interests and with protecting Indigenous rights; the **ação civil pública** is governed by Law 7.347 of 1985. Along the way a prosecutor can also negotiate a **termo de ajustamento de conduta** — a binding conduct agreement that can impose conditions or halt an activity without a full trial. None of this depends on the community having money for lawyers, which is precisely what makes it the great equaliser of Brazilian environmental defence.

Consulta Prévia and the Constitutional Land Shield

Where Indigenous or traditional peoples are affected, two of the strongest grounds in Brazilian law apply. Under **ILO Convention 169**, the community has a right to **free, prior, and informed consultation**, on its own terms — many peoples have adopted written **consultation protocols** defining how they must be consulted, and courts have halted licensing where consultation was skipped. Brazil incorporated ILO Convention 169 into its law (now by Decree 10.088 of 2019), and the courts treat the consultation duty as binding; crucially, communities have asserted the right to define **how** they are consulted, adopting their own written **protocolos de consulta** — the Munduruku's among the first — which set out who speaks for the people, in what language, on what timeline, and by what decision-making process, so that the State cannot substitute a token meeting for genuine consent-seeking. And under **Article 231 of the Constitution**, Indigenous peoples hold original rights to their traditionally occupied lands; flooding or exploiting them for energy or mining requires prior consultation and **authorisation by the National Congress** — a barrier that, at Tapajós, the recognition of Sawré Muybu made insurmountable. Quilombola communities hold related constitutional land rights. Demarcation of Indigenous land runs through stages — identification by FUNAI, declaration by the Ministry of Justice, and homologation by the President — and it is slow and politically fraught, which is why the Munduruku's self-demarcation mattered so much: it forced the process forward and created the recognised claim the dam could not overcome. For quilombola communities, the right flows from Article 68 of the Constitution's transitional provisions, with titling through the land agency; for both, the recognised (or credibly claimed) territory is a shield a project must reckon with. These levers belong to the affected people; your role is to support their leadership and resource their case where they welcome it. In practice that means offering capacity — research, technical evidence, logistics, a legal or prosecutorial contact — rather than direction, and accepting that the community may pursue the fight on its own terms, in its own language, and toward its own goals. The consultation right and the land are theirs; a campaign that forgets this not only wrongs the people it claims to help but weakens the very ground — the community's own voice and authority — on which the strongest legal case is built.

The Ação Popular and the Licence Challenge

Two further tools complete the arsenal. The **ação popular** lets **any citizen** go to court to annul an administrative act that harms the environment or the public patrimony — a direct route that does not depend on the prosecutor. And the **environmental licence itself** can be challenged — in an **ação civil pública** or by judicial review — where the **EIA/RIMA is deficient**, the **audiência pública** was a sham, or the process broke the law; a suspended or annulled licence sends the project back to the start. The **ação popular** is a distinctive democratic tool: because standing belongs to any citizen, it means a project's licence is never beyond challenge for want of an official claimant, and even a single determined resident can put the legality of an environmental act before a federal judge. Used alongside the Ministério Público's action rather than instead of it, it adds another front the proponent must defend.

The Suspensão de Segurança — Know the Counter-Move

You must understand the government's counter-weapon. When a community or prosecutor wins an injunction, the government can ask the president of a higher court for a **suspensão de segurança** — an order lifting the injunction on the ground that the project's halt would gravely harm the public order, health, safety, or economy. This is how **Belo Monte** was built despite dozens of prosecutors' victories, each suspended in turn. It does not make the fight hopeless, but it changes the strategy: rely not on a single injunction but on stacking pressure — multiple legal fronts, the constitutional land shield (which is far harder to override), consulta, the financiers, and the public — so that no one suspensão can clear the path.

Where to File and With Whom

Representações go to the **Ministério Público** (MPF or state); ações civis públicas and ações populares run in the **Justiça Federal** (for Indigenous and federal matters) or state courts, up through the appeals courts to the **STF** on constitutional questions. Get help early: environmental and Indigenous-rights NGOs, public-interest lawyers, and — above all — the prosecutors themselves know exactly these procedures and can advise on the strongest ground and how a non-Indigenous community can properly support a land- or consulta-based case. A representação filed while the licensing is open is worth far more than help sought after the machinery arrives.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades a prosecutor, a federal judge, a licensing official, a journalist, a financier, and the community itself in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that a dam would flood recognised Indigenous land, was licensed on an EIA that understated the flooding, and never had the prior consultation ILO 169 requires. That one fact becomes:

- **A constitutional argument:** the project would flood Indigenous land protected by Article 231 without the congressional authorisation the Constitution demands — the ground that sank Tapajós.
- **A consulta argument:** the community's right to free, prior, and informed consultation was denied — a ground that has halted licensing.
- **A prosecutorial argument:** a clear, evidenced representação that gives the Ministério Público the basis to open an inquérito civil and bring an ação civil pública.
- **A media argument:** a mega-dam that would drown a people's territory, waved through on an assessment that hid it — a clear, human story with a stake.
- **A financier argument:** a project resting on a constitutionally vulnerable, annulable licence is a legal and reputational risk to the banks and buyers behind it.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in Brazil the arguments that most often decide things are the **constitutional land shield and the consulta**, because they are the hardest for even a suspensão de segurança to override, and the **representação**, because it sets the Ministério Público in motion. Keep the arguments anchored to the same documented facts, so a claim made to a reporter can be backed in the prosecutor's file and a claim made to the court can be spoken plainly at a community assembly; consistency across audiences is itself persuasive. Learning to move fluently between these registers — the constitutional and consulta grounds for the prosecutor and the court, the river and the territory for the community and the public, the financial risk for the bank, the human story for the reporter — is one of the most valuable skills a campaign develops, because it lets the same underlying evidence work every lever at once without ever straying from the facts.

Match the Argument to the Audience

Prosecutors and the courts want the illegality framed precisely against the specific rule — Article 231, ILO 169, the licensing law, the EIA defect — with the documents and the timeline that prove it, and, on Indigenous rights, led by the affected people.

Licensing officials and the government respond to legal risk and political cost — the annulable licence, the mobilised public, the constitutional exposure, the prosecutors circling.

Journalists need a specific, verified, human story with a hook: a named river, a named people, a documented defect, an

imminent decision.

Financiers, including public and private banks, and buyers respond to legal, reputational, and financial exposure — a contested project on a constitutionally shaky licence, tied to a named consortium.

The community itself needs to see that the fight is winnable and shared — the small wins, the growing movement, the pressure mounting — so it lasts.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Media is not vanity; it is a lever. Coverage raises the political cost of a licence, reaches officials, ministers, and the project's financiers your letters cannot, protects activists by making them visible — which matters intensely in Brazil — and can turn a local fight into a national and international cause. The Tapajós campaign proved it: images of the Mundurucu demarcating their own land, and reporting that reached the world, made the dam a symbol and helped create the moment the agencies acted in.

Build the Story

Reporters need specifics: a named place and people, a dated and documented defect or harm, a clear stake, and a live decision or deadline. "A project threatens the Amazon" is not a story; "a mega-dam would flood the recognised territory of the Mundurucu people, licensed on an assessment that hid it and without the consultation the law requires, with a decision due next month" is. Lead with your strongest verified fact, attach the map and the imagery, and offer a human voice — a community leader where the people choose to speak, a fisher, a scientist — and a striking image, as the Tapajós and its people became. Brazilian and international audiences respond powerfully to the Amazon and to Indigenous rights: a named river, a named people, a recognised territory about to be drowned, and a decision with a date carry a moral clarity that a debate about megawatts never will. The Tapajós campaign understood that the image of a people mapping and defending their own land told the whole story in a single frame.

Reach the Right Outlets

Work outward in rings. **Local and regional press** first, where the project is felt. Then **national outlets** — the major papers, broadcasters, and Brazil's strong investigative and environmental press — which carry political weight. Then, for a project touching a listed company, an international bank, or a globally resonant value (the Amazon, Indigenous rights), **international and financial media**, which reach the money and the world; the Amazon draws global attention that domestic politics cannot ignore. Feed each ring what it needs, and let coverage in one pull in the next. Pay particular attention to the ring that reaches the **financiers**: reputational coverage and briefings to a project's banks and investors can reach it where the licensing cannot. It is worth identifying the specific environment, Amazon, and Indigenous-affairs reporters who cover these projects, and the responsible-finance analysts who advise the banks; a journalist who already knows the terrain needs less briefing and carries more weight, and a single well-sourced investigation into a licence granted over its own technicians' objections can move a bank or a minister more than a month of releases. Offer your strongest documented finding as an exclusive and you gain an ally, not just a mention.

Sustain It, Make It Safe and True

A single article changes little; a drumbeat changes decisions. Plan a sequence — the hearing, the licence, the representação, the lawsuit, the new document, the demarcation, the action — so there is always a next hook, and build your own record (a simple site, a social feed, a growing album of dated photographs and video) so the story exists in a form journalists can pick up and that survives if posts are removed. Keep messaging disciplined, accurate, and consistent; one exaggeration handed to the other side can cost you credibility you cannot rebuild. Follow the affected people's lead on how their story and knowledge are told. And weigh safety in every choice — visibility protects leaders, but so does not exposing them recklessly. Verified, specific, human, and relentless — that is the coverage that shifts outcomes.

EMAILS & LETTERS

Written communications are how you object, create a record, and reach the bodies that can act. Each does double duty: it asks for something and it documents that you asked. Keep copies of everything, and send important items so that receipt

is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

8A. Objection at the Audiência Pública / to the Licensing Agency

To: the licensing agency (IBAMA or the state environmental agency) **Subject:** Manifestação — [project], licensing process [number]

As a person/community affected by [project] at [location], I present the following objections. My grounds, with evidence: (1) the EIA/RIMA [understates/omits] [impact — e.g. the flooding of [river/territory], the fisheries]; (2) [the project affects the land of [Indigenous/quilombola community] and requires prior consultation and, for energy/mining on Indigenous land, congressional authorisation]; (3) [prior consultation under ILO 169 has not taken place]; (4) [the audiência pública/process was inadequate on [point]]. I request that the licence be **denied**, and that these objections be formally answered. [Attachments: technical note, maps, records.]

8B. Representação to the Ministério Público (the key move)

To: the Ministério Público Federal [or the state Ministério Público] **Subject:** Representação — environmental and [Indigenous] rights, [project]

I bring to the Ministério Público the following facts regarding [project]: [sourced facts — the flooding of recognised Indigenous/traditional land, a deficient EIA, absent consultation, an unlawful licence]. These appear to breach [Article 231/225 of the Constitution, ILO Convention 169, the environmental-licensing law]. I request that the Ministério Público open an **inquérito civil**, requisition the licensing file and technical opinions, and consider an **ação civil pública** to suspend the licensing and the project. I attach my documentation and remain available to provide more.

8C. Access-to-Information Request

To: [IBAMA / the state agency / FUNAI / the relevant body] **Subject:** Access-to-information request (Lei de Acesso à Informação) — [project]

Under the Lei de Acesso à Informação, I request: the EIA/RIMA and annexes; the audiência pública record; the licence, its conditions, and the technical opinions (pareceres) behind it; [the FUNAI reports and land-demarcation status]; and [correspondence between the proponent and the agency on [issue]]. Please respond within the statutory period. I note the public interest in environmental and Indigenous-rights information.

8D. Supporting an Affected People's Consulta / Land Claim (at their invitation)

To: [the licensing agency / FUNAI / the Ministério Público], with the community's agreement **Subject:** [Project] — support for [community]'s rights to consultation and land

As a community group in [place], at the invitation of and in support of [Indigenous/quilombola community], we underline the rights the community has asserted regarding [project]: its right to **free, prior, and informed consultation** (including under its own consultation protocol), and its constitutional rights to its territory. We do not speak for the community; we stand with it, and we ask that its rights and the Constitution be honoured before any licence proceeds. [Attach material the community is content to have shared.]

8E. Letter to a Financier / Bank / Buyer

To: [the project's bank / investor / buyer] **Subject:** [Project] — legal and reputational risk

We write regarding your [financing of / investment in / purchasing from] [company] in connection with [project]. The project [one-line stake — e.g. "would flood recognised Indigenous land in breach of the Constitution, rests on a legally vulnerable licence, and is opposed by the affected people and by prosecutors"], and our documented concerns include [the constitutional defect, the absent consultation, the deficient EIA, the pending action]. We ask you to weigh the legal, reputational, and financial risk, and whether your own [environmental, social, and human-rights commitments] are consistent with supporting it. We are glad to share our evidence.

8F. Letter to an Official / Legislator

To: [the relevant official / a federal or state deputy or senator] **Subject:** [Project] — concerns and request

We are residents of [place] writing about [project]. Our concern, briefly: [one or two specific grounds — the flooding of a people's territory, a deficient assessment, absent consultation]. Within your responsibility, we ask you to [oppose or condition the licence / uphold the constitutional protection of the land and the consultation right / scrutinise any congressional authorisation]. [If true:] [#] communities and organisations share this concern, and the licence carries real legal risk. We welcome a meeting and can share our full evidence.

8G. Email to a Reporter (Regional, National, or International)

To: [journalist] **Subject:** Story tip: [specific finding] — [the river / the people]

I follow your coverage of [beat]. We have something your readers should know, with a clear news hook: [documents] show [quantified finding — e.g. "a mega-dam would flood the recognised territory of the [people], licensed on an assessment that hid the flooding and without the consultation the law requires"], with [a decision/hearing] due [date]. It is specific, verified, and it echoes the Tapajós fight. I can share the full file and — where the community wishes to speak — connect you with affected people and a scientist. Could we talk this week?

8H. Letter Instructing / Working with a Public-Interest Lawyer or NGO

To: an environmental or Indigenous-rights NGO or lawyer **Subject:** [Project] — ação civil pública / ação popular / consulta

We believe the [licence] for [project], of [date], is unlawful because [it would flood constitutionally protected land without congressional authorisation / consultation was skipped / the EIA is deficient]. We attach the licence, the EIA, the participation and consultation record, and our timeline, and seek your advice on an **ação civil pública** or **ação popular**, on supporting the affected people's consulta and land claim, on the risk of a **suspensão de segurança** and how to stack pressure against it, and on the strongest ground.

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation and technical reports; and route them, where you can, through or with the affected people (following their lead), the **Ministério Público**, and your NGO and financier-facing allies. The reply — or the silence — becomes part of your record, and in Brazil that record feeds the levers that matter most: the audiência pública, the Ministério Público and the ação civil pública, consulta, the constitutional land shield, and the public.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With a few hours a week you can still do real damage to a bad project. In rough order of impact for the effort:

- 1. Take a complaint to the Ministério Público — first.** A detailed, evidenced **representação** (8B) can set an independent, publicly funded prosecutor investigating and, potentially, suing to halt the project — the highest-leverage thing a Brazilian community can do, and it costs nothing.
- 2. Check for Indigenous or traditional land and consulta.** Establish whether the project affects the land of an Indigenous, quilombola, or traditional community, and whether the consultation the law requires took place. If it affects such land, the constitutional shield and consulta are the strongest grounds there are — led by the community.
- 3. Object at the audiência pública.** One evidenced objection (8A) puts your case on the licensing record and creates grounds for later challenge — but the window is limited, so act while it is open.
- 4. Get the documents.** The EIA and much of the file are public; the rest comes under the access-to-information law (8C) — or, powerfully, a prosecutor can requisition what you cannot. The gap between the EIA and the law is usually the case.
- 5. Reach an NGO and a lawyer.** Environmental and Indigenous-rights organisations (8H) can bring litigation, science, reach, and — vital in Brazil — protection for exposed leaders.
- 6. Brief the financiers.** A project's banks and buyers (8E) respond to legal and reputational risk a licence never will.

7. Tell the story. A river, a forest, a people's territory is a powerful story, and in Brazil international attention matters; one accurate tip (8G) can reach the world.

Do only the first three and you will have set a prosecutor in motion, identified your strongest constitutional ground, and put your case on the record while it counts — the exact foundation a bigger fight is built on. Then come back and read the rest. Even the shortest version has a spine: go to the Ministério Público, check the land and consulta, object at the hearing. Everything else in this guide amplifies those three moves. A community that does only them has already done more than most projects' opponents ever manage — and has often done enough to set a prosecutor investigating, put the constitutional land question on the table, and place a specific, evidenced objection on the licensing record where it counts.

WHEN THE SYSTEM IS TILTED

Brazil's system is tilted in specific ways you must understand, so you neither waste effort nor miss the levers that still work.

Where the Tilt Shows

The tilt runs, above all, through the **suspensão de segurança** — the government's power to persuade a senior judge to **lift an injunction** because halting a project would supposedly harm the public order or economy. This is how **Belo Monte** was built despite dozens of prosecutors' court victories, each suspended in turn; it is the single most important feature of the tilted terrain. Belo Monte, on the Xingu River in the state of Pará, became one of the very largest hydroelectric projects anywhere on Earth, and the Ministério Público Federal brought action after action against its licensing and its failures to consult and mitigate — winning many at first instance, only to watch each injunction lifted by a court president invoking harm to the economy and public order. The lesson is not that the courts are useless but that a single victory is fragile: what endures is the accumulation of fronts, and above all the constitutional land shield, which is far harder to suspend than an ordinary injunction. Beyond it: environmental **licensing approves the great majority of projects**; the agencies that can stop a project — IBAMA, FUNAI — have at times been **deliberately weakened and pressured** by the government of the day; **demarcation of Indigenous land is slow and bitterly fought**, with recurring political attempts to narrow Indigenous rights; and Brazil is **one of the deadliest countries in the world for land and environmental defenders**. Year after year, international monitors record Brazil among the countries with the most killings of people defending land, forests, and rivers, with Indigenous leaders and Amazon defenders especially at risk. This is not a reason to abandon the fight, but it is a reason to build protection into every decision — collective leadership, documented threats, strong outside links, and security advice — rather than treating safety as an afterthought. Where this tilt bites, the formal process gives less than it should — but real levers still reach past it.

What Still Works — And Some Is Distinctive

The decisive point is that even where the system tilts, real and distinctive levers reach past it.

The Ministério Público is independent. Prosecutors do not answer to the government that wants the project, and their investigations and lawsuits proceed regardless — a standing, publicly funded adversary a proponent cannot easily silence.

The constitutional land shield is hard to override. A suspensão de segurança can lift an injunction, but the constitutional protection of Indigenous and traditional land, and the congressional-authorisation requirement, are structural barriers of a different order — the barrier that stopped Tapajós.

Consulta cannot simply be skipped. The ILO 169 right, defined by communities' own protocols, is a recurring, court-recognised obstacle to licensing. A licence granted without the consultation the law requires is vulnerable for as long as that defect stands, whatever the government's enthusiasm for the project.

The record and the representação endure. What you document and file with a prosecutor powers investigations and lawsuits over years, whatever any single decision.

Mobilisation and international attention endure. The Munduruku tradition — resistance, self-demarcation, and a story the world watches — is a force no suspensão can dissolve, and the Amazon draws a global spotlight.

The Honest Frame

So the honest frame for Brazil is real but demanding. The Ministério Público, the constitutional land shield, consulta, the ação popular, and a deep resistance tradition give a community genuine — in places uniquely — power, as Tapajós proved. But the suspensão de segurança can override the courts, licensing approves most projects, agencies can be

captured, demarcation is slow, and defenders are in real danger. So diagnose the tilt honestly: lean on the prosecutors, the constitutional land shield, consulta, and the mobilisation, not on a single injunction that can be suspended; stack multiple fronts so no one suspensão clears the path; document every defect; protect your people above all; treat a win as something to be defended, not banked; and think in terms of delay, conditions, exposure, and a proponent worn down as much as an outright, permanent stop. Against a government determined to build, that is often what winning looks like — and it is real.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Sometimes a project advances not despite the evidence but because someone is being improperly favoured, pressured, or paid. Undue influence changes your strategy: you stop trying to persuade a captured decision-maker and start exposing and going around them.

How to Tell

Look for the signatures of capture. A **licence granted against the technical opinions** of the agency's own staff, over strong objections and Indigenous opposition, suggests more than error. **Internal pareceres overridden**; a project **steered to a weaker state agency** to dodge federal scrutiny; a **consulta staged** as a formality; **undisclosed ties, contracts, or campaign donations** between the proponent and officials; **licence conditions never enforced**; and a **suspensão de segurança** deployed to crush every legal victory all point the same way. And **threats or violence against the community's or campaign's leaders** — tragically common in Brazil — are themselves a signature of something deeply wrong. One anomaly may be error; a pattern is capture. Lay your timeline beside the official one and watch for approvals that cluster around a contract, an appointment, or a donation.

Who Can Be Captured — and Who Is Harder

Be clear-eyed about where undue influence reaches. A **licensing agency, a state official, or a staged consulta** can be pressured or captured. But the Brazilian system has bodies harder to reach that a captured local arrangement cannot easily control: the **Ministério Público**, constitutionally independent; the **Justiça Federal** and the **STF**; the **Tribunal de Contas**; the federal **Polícia Federal** for crimes; and the national and international press. Undue influence thrives on darkness and on staying local; your task is to lift the matter out of the captured node and into the light and the higher, cleaner fora — and in Brazil the Ministério Público is often the most powerful place to lift it to.

What to Do

Do not confront and tip off the captured decision-maker. Instead, **document the anomaly precisely** — the dates, the overridden opinions, the ties, the staged consulta, the missing enforcement — and take it, with evidence, to the **Ministério Público** (which can investigate corruption as well as environmental harm), the Tribunal de Contas, the courts, and the press. Pair the referral with the ação civil pública, the constitutional land defence, and the financier and public pressure, so the wrongdoing and the harm are exposed together. Exposure has its own momentum: a prosecutor's inquérito or a court's attention creates a record other bodies must reckon with, and a consulta shown to be staged or an opinion shown to be overridden can collapse the licence. And protect yourself above all — this is life-and-death in parts of Brazil: get security and legal advice, coordinate with prosecutors and national and international networks, keep the work collective and visible, and never carry it alone.

INTEGRATION & TIMELINE

The five steps win when they run together. Here is how they fit across the life of a fight.

Early (Weeks 0-8): Identify, Connect, and Activate the Prosecutor

Pin down the project, the licence, and the stage (Step 1), and, where Indigenous or traditional peoples are affected, support the community's leadership and its rights to consultation and land (Step 3). Begin the file — get the EIA and the licensing record, and request documents under the access-to-information law (Step 2 and What to Gather). And move fast on the highest-leverage things: **file a representação with the Ministério Público, object at the audiência pública, and assert the land shield and consulta**. Reach an NGO and a lawyer, and — vital — put protection for exposed

leaders in place. This early phase is cheap, and it sets up everything else.

Middle (Months 2-24): Escalate on Every Front

Grow the movement and coalition (Step 3). Turn your evidence into arguments for each audience (Turning Evidence). Escalate legally as the facts warrant — an *ação civil pública* through the prosecutor, an *ação popular*, a *consulta* claim, and the constitutional land defence (Step 4) — and **stack the fronts** so no single *suspensão de segurança* can clear the path. Refer any corruption to the Ministério Público and the Tribunal de Contas. Press the financiers and banks (8E). Build the media drumbeat from local to national to international (Step 5). Each front feeds the others. Do the cheap, time-sensitive things first, because a missed hearing or licensing window cannot be recovered. And sequence the moves with your lawyer, the prosecutors, and the community so they land when they bite hardest — the *representação* built on the fullest evidence, the constitutional land defence and *consulta* claim led by the affected people, the *ações* filed to create several simultaneous fronts — because in Brazil a single well-timed action matters less than a web of them the government cannot suspend all at once.

Later (Months 6-60+): Sustain, Win the Line, and Redefine the Win

Sustain the movement against burnout; protect your people; keep the record and the coverage alive. Pursue the durable prizes — a **denied or suspended licence**, a **project barred from protected land**, a **completed demarcation**, an ***ação civil pública* won**, a **financier walking away**, an **abandonment**. And judge success honestly. Sometimes it is an outright stop — a licence denied, a river saved, as at Tapajós. More often, against a determined government, it is a project **delayed for years, shrunk, conditioned, stripped of finance, or so legally and reputationally besieged that the proponent walks away**. That is not a lesser victory. It is what winning usually looks like, and it is worth every effort it takes.

The Shape of a Campaign

WEEKS 0-8	Identify Support the people Document Representação to the MP Object at the hearing Protect leaders
MONTHS 2-24	Grow the movement Arguments Ação civil pública + consulta + land shield (stack the fronts) Financiers Media
MONTHS 6-60+	Sustain Protect people Win the denied licence / barred land / demarcation Redefine the win

FINAL ASSESSMENT

Brazil gives communities a genuinely powerful — and, in places, unique — set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits.

The strengths are real and distinctive. A community can set an independent, publicly funded prosecutor in motion with a ***representação***, and the **Ministério Público** can investigate and bring an ***ação civil pública*** to halt the project — a lever few countries offer. Where Indigenous or traditional peoples are affected, the **constitutional shield of Article 231**, the requirement of **congressional authorisation** for energy and mining on Indigenous land, and the right to **free, prior, and informed consultation** are formidable barriers — the barriers that stopped the São Luiz do Tapajós mega-dam in its tracks. Any citizen can bring an ***ação popular***; the licensing **public hearing** is an open door; and a **deep resistance tradition**, including the self-demarcation the Munduruku used, prompts the institutions to act.

The limits are just as real. The ***suspensão de segurança*** can lift the injunctions a community wins, as it did throughout the building of Belo Monte; licensing approves most projects; agencies can be pressured and weakened; demarcation is slow and fiercely contested; and Brazil is one of the most dangerous places on Earth to defend land and rivers. No guide should pretend otherwise. Belo Monte stands, and the Tapajós basin still holds dozens of planned dams; that is the condition of this fight, not its exception.

So the realistic promise is this: **take a well-evidenced complaint to the Ministério Público, assert the constitutional land shield and the right to consultation, object at the hearing, document every defect, stack multiple legal fronts against the suspensão de segurança, reach the financiers, mobilise the public — and run all of it together, protecting your people above all and following the affected community's lead**. Do that, and even against a government determined to build you can force delay, conditions, exposure, lost finance, a suspended or denied licence, and a proponent worn down — and sometimes an outright stop. Do it as the Munduruku did, with a people's assertion of its own land and a chain of institutions made to honour it, and you can win a victory that protects not only your own river but sets a precedent others will stand on.

A last word on endurance. These fights are won in years, not weeks, and the proponent is counting on your exhaustion —

and, in Brazil, sometimes on your fear. Its advantage is money, patience, and the suspensão de segurança; yours is legitimacy, the independent prosecutors of the Ministério Público, the Constitution's protection of the land, and the plain fact that you are defending your home and your river while it is merely pursuing a return. Play to that. Keep the file, keep the movement, keep the record and the coverage alive, protect your people, and treat every delay, every suspended licence, every prosecutor's inquérito, every financier that walks, and every headline as a brick in a wall that grows too high and too costly for the project to climb.

The tools are here, and Brazil's history proves they work: a mega-dam that would have drowned a people's territory was stopped, because the Munduruku marked out their own land, an agency was made to recognise it, and the Constitution held. What decides the outcome is method, endurance, and courage — and those you supply. Begin today, begin cheaply, and build from there. Communities before you have stopped what looked unstoppable — a mega-dam's licence denied, a people's land defended by their own hands and by the Constitution, a river left to run free through the heart of the Amazon. The tools are here, and the most powerful of them — the independent prosecutors and the constitutional shield around the land — do not depend on a community's wealth; what has ever been missing in the fights that were lost was not the law but the organisation, the endurance, and the protection to use it. So can yours.